

26VECV04291 26VECV04291

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CT%2C09%2F17%2F2026

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Case Number: 26VECV04291 Hearing Date: September 17, 2026 Dept: T

26VECV04291 Dermenjian v Shopping Service

[TENTATIVE] ORDER: Plaintiffs Adriana Dermenjian and Vernalie Deirmenjian, Individually and as Trustees of the Deirmenjian Family Trust, and Hokis LLC's OSC re: Preliminary Injunction is DENIED. Defendants Shopping Service Corporation and Daryoush Kashani shall maintain the wall and the rear gate per the Court's order dated July 30, 2026.

Defendants Shopping Service Corporation and Daryoush Kashani's Request for Judicial Notice is GRANTED as to the existence of the documents but not as to hearsay or facts in dispute.

Defendants Shopping Service Corporation and Daryoush Kashani's Evidentiary Objections are SUSTAINED as to nos. 1, 2, and 4 through 10; and OVERRULED as to nos. 3, and 11 through 21.

The Court sets an OSC re: Sanctions at \$1,000.00 per day against Defendants Shopping Service Corporation, Daryoush Kashani and Attorney Shalem Shem-Tov for _____, 2026. The OSC re Sanctions will be discharged upon submission of evidence showing compliance with the Court's order dated July 30, 2026.

Introduction

Plaintiffs Adriana Dermenjian; Vernalie Deirmenjian, Individually and as Trustees of the Deirmenjian Family Trust, and Hokis LLC (collectively, Plaintiffs) moved for a preliminary injunction against Defendants Shopping Service Corporation and Daryoush Kashani. Plaintiffs request that Defendants: (1) be prohibited from maintaining and be ordered to remove the wall constructed between Plaintiffs' building/store fronts and Defendants' parking lot; (2) be prohibited from maintaining and be ordered to remove the steel bars blocking the use of the rear walkway gate on Plaintiffs' building; (3) be prohibited from charging fees that are not in compliance with the formula used by SSC the last 43 years for use of the parking lot; and (4) be prohibited from interfering with Plaintiffs and Plaintiffs' tenants from accessing Plaintiffs' tenants' stores from Defendants' parking lot (i.e., prohibiting Defendants' interference of tenants' walking, driving parking on Defendants' parking lot). Plaintiffs also request that an undertaking/injunction bond be issued.

The Complaint alleged seven causes of action (COA): (1) continuing private nuisance and for temporary restraining order (TRO), Preliminary Injunction, and Permanent Injunction; (2) intentional interference with contractual relations; (3) intentional interference with prospective economic advantage; (4) promissory estoppel; (5) equitable irrevocable license; (6) equitable easement by estoppel or equitable lien; and (7) declaratory and injunctive relief.

Discussion

To obtain a preliminary injunction, Plaintiff has the burden to show with admissible evidence: (1) that there is a reasonable probability of prevailing on the merits and (2) the relative balance of harms that is likely to result from the granting or denial of the preliminary injunction. These two showings operate on a sliding scale. (Code Civ. Proc., sec. 526; *White v. Davis* (2003) 30 Cal.4th 528, 554; *Integrated Dynamic Sols., Inc. v. VitaVet Labs, Inc.* (2016) 6 Cal.App.5th 1178, 1183.)

Preliminarily, Plaintiffs' COAs can be divided into two categories, tort and equity. Plaintiffs' first, second and third COAs for nuisance and interference are tort claims. For prejudgment injunctive relief, the legal remedy must be inadequate. (Code Civ. Proc., sec. 526(a)(4).) The requested relief under the tort claims is legal in nature and pecuniary compensation would be adequate. Because the legal remedy under the first three COAs is adequate, injunctive relief under the first three COAs would be improper. Plaintiffs' request for prejudgment preliminary injunctive relief, to the extent the request is made under the first three COAs, is unpersuasive.

Plaintiffs' fourth, fifth, and sixth COAs for promissory estoppel, equitable irrevocable license, and equitable easement by estoppel or equitable lien are claims in equity. Relief requested under the Court of Equity would not provide a legal remedy.

To plead and prove the fourth COA for promissory estoppel, Plaintiffs must allege/prove, in relevant part, a clear and unambiguous promise. (*Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1034, 1044; *US Ecology, Inc. v. State of California* (2005) 129 Cal.App.4th 887, 901-905, 908.) Plaintiffs alleged that Defendants' wrongful conduct included denying Plaintiffs had any rights to use Defendants' parking lot; improperly raising the fees for the use of Defendants' parking lot by 300%; and constructing a wall and a rear gate/door to separate Plaintiffs' property from Defendants' parking lot. (Compl. pars. 3, 20-27, 36, 51, 57, 69, 80, 84, and 88.) However, Plaintiffs failed to present any facts or evidence to support their claim that Defendants clearly and unambiguously promised to Plaintiffs that Plaintiffs/Plaintiffs' tenants had rights to use the parking lot; would not increase the fees to use the parking lot, or promised not to construct a wall and rear gate to prevent Plaintiffs/Plaintiffs' tenants use of the parking lot. At most, Plaintiffs alleged that the grantor of their property, when Plaintiffs purchased their property in 1983, "assured Plaintiffs that the Property was being sold to them with the right to enter, leave, drive across, and to park in the shopping center's parking lot controlled and managed by [Defendants]." (Compl. par. 17.) Further, Plaintiffs' evidence supported the same allegation that the representations regarding the use of Defendants' parking lot came from Plaintiffs' grantor. (*Vernalie Deirmenjian* (*Vernalie*[1]) Decl. par. 7.) Assurances from Plaintiffs' grantor are not promises from Defendants because Plaintiffs' grantor and Defendants are not shown to be one in the same person. Without any facts to show a promise from Defendants, Plaintiffs failed to meet their initial burden to show a probability of prevailing under the fourth COA for promissory estoppel.

The allegations, as well as Plaintiffs' evidence, further showed that Defendants allowed Plaintiffs to use the parking lot for a fee for 43 years (i.e., since Plaintiffs purchased their property in 1983). (Compl. par. 19; *Vernalie* Decl. pars. 8-9.) However, the history of Plaintiffs permitted use for a fee (i.e., access to the parking lot directly from Plaintiffs' tenants' store front and access to the parking lot directly from the rear of Plaintiffs' building) is not sufficient to show a clear and unambiguous promise. Even if a promise could be inferred/implied from Defendants' conduct or acts, the secondary issue presented by Plaintiffs is that Defendants have improperly raised the fee for the use of the parking lot by 300%, which is allegedly in excess of the formula allowed in Defendants' Covenants, Conditions and Restrictions (CC&R) recorded in 1950. (Compl. pars. 1-3 and 18-20.) Inferred from this allegation is that Defendants would have allegedly promised not to raise the parking lot fee and/or promised to only raise the parking lot fee by reasonable amounts. However, no allegations or facts are presented to show that Defendants made clear and unambiguous promises to either maintain the same parking lot fee or only raise the fee by reasonable amounts. Plaintiffs' use of the parking lot for 43 years only presents evidence as to Plaintiffs' use and use does not equate to promises regarding the fees assessed or a right to use. Further, Plaintiffs failed to present evidence to support their allegation that Defendants' CC&Rs dictate how the fees are calculated, specific to Plaintiffs. In fact, Plaintiffs' evidence is equivocal as to whether Plaintiffs' grantor was even a signatory member of the CC&Rs and thus it remains to be seen if Plaintiffs are a signatory member of the CC&Rs. (*Vernalie* Decl. par. 6.) Because Plaintiffs do not present evidence to support their claim that the provisions in Defendants' CC&Rs grant Plaintiffs their rights to use the parking lot and/or provide the calculation of parking lot fees, Plaintiffs failed to meet their initial burden to show that they have a probability of prevailing on the promissory estoppel COA.

As to the fifth COA for equitable irrevocable license, the pleading and proof element, in relevant part, is that a party must show use and improvement of the easement or the licensed area. The improvements must be a substantial expenditure. (*Richardson v. Franc* (2015) 233 Cal.App.4th 744, 755-756; *Cooke v. Ramponi* (1952) 38 Cal.2d 282, 286-287.) Plaintiffs'

allegations and evidence fail to show that Plaintiffs made any improvement or made any substantial expenditure upon the section of Defendants' parking lot that is at issue or the rear door/gate. Without evidence as to any expenditures by Plaintiffs, Plaintiffs fail to meet their initial burden to show that there is a reasonable probability of prevailing on the fifth COA.

The sixth COA for equitable easement by estoppel or equitable lien is a judicially created easement when the Court refuses to enjoin encroachments by an encroacher. In general, the defendant encroacher is the wrong-doer based upon defendant's construction of an improvement upon plaintiff's land. The plaintiff is generally entitled to an injunction requiring the defendant to remove the encroachment/improvement from plaintiff's land. However, the Court has discretion to deny an injunction and instead compel the plaintiff to accept damages as compensation for a judicially-created easement that allows the defendant to maintain the encroaching improvement. (*Shoen v. Zacarias* (2015) 237 Cal.App.4th 16, 19-20.) When the trial court refuses to enjoin the encroachments, the effect is a judicially created easement. In proper cases, the Court may exercise their equity powers to affirmatively fashion an interest in the owner's land which will protect the encroacher's use. This interest is commonly referred to as an equitable easement. (Id.) "For a trial court to exercise its discretion to ... grant an equitable easement, 'three factors must be present. First, the [encroacher] must be innocent. That is, his or her encroachment must not be willful or negligent. The court should consider the parties' conduct to determine who is responsible for the dispute. Second, unless the rights of the public would be harmed, the court should [stop the encroachment] if the [burdened landowner] 'will suffer irreparable injury ... regardless of the injury to [the encroacher].' Third, the hardship to the [encroacher] from [ordering removal of the encroachment] [']must be greatly disproportionate to the hardship caused plaintiff by the continuance of the encroachment and this fact must clearly appear in the evidence and must be proved by the defendant.' " [Citation.] 'Unless all three prerequisites are established, a court lacks the discretion to grant an equitable easement.' " (*Nellie Gail Ranch Owners Assn. v. McMullin* (2016) 4 Cal.App.5th 982, 1003–1004 (*Nellie Gail*).) The equitable discretion of the Court is not limited to physical encroachments but has been extended to rights of ingress/egress for landlocked properties. (*Tashakori v. Lakis* (2011) 196 Cal.App.4th 1003, 1009 (*Tashakori*).)

Plaintiffs' evidence provided that Plaintiffs' use of Defendants' parking lot was based upon their grantor's representation that Plaintiffs' property came with rights to use Defendants' parking lot. Plaintiffs evidence provided that Plaintiffs used Defendants' parking lot for 43 years with the payment of fees to Defendants. Defendants do not dispute Plaintiffs use of the parking lot for the 43 years and Defendants failed to present any evidence to show that Plaintiffs' use was anything but innocent. However, with the payment of fees to Defendants for the use of the parking lot, the inference is that Plaintiffs knew that their right to use the parking lot was not absolute or innocent. Facts are presented to show that Plaintiffs' use of the parking lot could either be innocent or willful. It is unclear if Plaintiffs' use of the parking lot was innocent.

Second, there are no facts presented by either party to show that the rights of the public would be harmed if Plaintiffs were allowed to use the parking lot. Defendants also do not present any facts to show that Defendants will suffer irreparable injury if the "encroachment" (i.e., Plaintiffs' use of the parking lot) were allowed to proceed, especially if Plaintiffs were to continue paying the fees.

Third, Plaintiffs' hardship from being barred from the parking lot only appears to be minimally disproportionate to the hardship suffered by Defendants. The actual hardship is born by Plaintiffs' tenants since lack of parking for their customers causes a decrease in revenue for their businesses. Plaintiffs' hardship is merely monetary in that Plaintiffs' tenants would not be able to pay rent due to the decreased revenues. Any hardship experienced by Plaintiffs would only be minimally disproportionate to Defendants' hardship. Defendants' hardship being a reduction in the fees received from the use of the parking lot.

A review of the three factors for equitable easement shows that Plaintiffs have not presented sufficient facts to show that a reasonable probability of prevailing exists on the sixth COA. Even if a reasonable probability of prevailing exists, the Court notes that the facts of the instant action are distinguishable from the facts reviewed in the case law cited above. The instant action does not involve land-locked property. The *Tashakori* opinion reviewed the balancing of hardships suffered between two adjacent property owners wherein one property owner was landlocked from the public roadway. It is undisputed between the parties that Plaintiffs' tenants' customers can access the business from the public sidewalk. The only impediment is the lack of parking because parking would be limited to the public street. Because equitable easement is not shown to be extended to parking issues, the Court does not see how Plaintiffs can show a reasonable probability of prevailing on the sixth COA for equitable easement.

As to the seventh COA for declaratory relief/injunctive relief, the analysis in the above fourth, fifth, and sixth COAs would apply since the dispute at issue is Defendants' barring Plaintiffs' tenants from using the parking lot. Without facts to show Plaintiffs' entitlement to use the parking lot through promissory estoppel, license, or easement, Plaintiffs have not shown a reasonable probability of prevailing on the declaratory relief/injunctive relief COA.

Plaintiffs' failure to show a reasonable probability of prevailing on the merits of their action requires a greater showing that the balancing of the hardships is in Plaintiffs' favor. However, as reviewed above, the only hardship being experienced by Plaintiffs is that Plaintiffs' tenants are either not paying rent or requesting decreases in rent. When balancing Plaintiffs' hardship with Defendants' rights to control access/use of their parking lot, the balancing is, at best, equal, and does not fall in favor for either side. The monetary losses allegedly suffered by Plaintiffs are also seen to be adequately compensated through legal damages under the tort COAs. Because Plaintiffs have not shown that the balancing of the hardships falls in their favor, Plaintiffs fail to meet their burden on the preliminary injunction.

The OSC re: Preliminary Injunction regarding Plaintiffs' request that Defendants: (1) be prohibited from maintaining and be ordered to remove the wall constructed between Plaintiffs' building/store fronts and Defendants' parking lot; (2) be prohibited from maintaining and be ordered to remove the steel bars blocking the use of the rear walkway gate on Plaintiffs' building; (3) be prohibited from charging fees that are not in compliance with the formula used by SSC the last 43 years for use of the parking lot; and (4) be prohibited from interfering with Plaintiffs and Plaintiffs' tenants from accessing Plaintiffs' tenants' stores from Defendants' parking lot is DENIED. Defendants are ordered to maintain the wall and the rear gate, as ordered at the July 30, 2026, hearing.

The Court further sets an OSC re: Sanctions due to Defendants' violation of the Court order dated July 30, 2026. Through the opposition briefs, Defendants presented facts to show Defendants' violation of the Court's order because the wall was not reduced to a three-foot height and the wall remains above the three-foot height limitation due to the posts and the newly added cross-bars attached to the posts. Defendants, unilaterally, modified the Court's order dated July 30, 2026. Defendants failed to seek leave of Court to modify the Court's order and failed to present any facts to support any request to modify the Court's order. Defendants' contentions related to alleged safety issues are viewed as Defendants' unilateral liberalities in interpreting the Court's order. The newly added cross-bars and the failure to reduce the posts to three-feet are in violation of the Court's order. The Court issues sanctions at the daily rate of \$1,000.00 against Defendants and their Counsel, jointly and severally, starting from July 31, 2026, unless Defendants comply with the Court's order by removing the cross-bars and posts that are above three-feet in height.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.

[1] The Court used the parties' first names to avoid confusion and does not mean any disrespect.